

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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ARTIE KEELING,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER FRANKIE SOLER, Shield No. 27130 (Tax Id. No. 946278), Individually and in his Official Capacity, SGT. JOSE PEREZ, Shield No. 04499 (Tax Id. No. 935496), Individually and in his Official Capacity, SGT. WILLIAM RIVERA, Shield No. 03726 (Tax Id. No. 946705), Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

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SUMMONS

Jury Trial Demanded

Plaintiff designates New York County as the place of trial.

The basis of venue is:
CPLR § 504(3)

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
January 30, 2018

COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

TO:

ZACHARY W. CARTER
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

POLICE OFFICER FRANKIE SOLER, Shield No. 27130 (Tax Id. No. 946278)
41st Precinct
1035 Longwood Ave.
Bronx, NY 10459

SGT. JOSE PEREZ, Shield No. 04499 (Tax Id. No. 935496)
Patrol Borough Manhattan North
151 W. 100th St.
New York, NY 10025

SGT. WILLIAM RIVERA, Shield No. 03726 (Tax Id. No. 946705)
20th Precinct
120 W. 82nd St.
New York, NY 10024

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THE CITY OF NEW YORK, POLICE OFFICER FRANKIE SOLER, Shield No. 27130 (Tax Id. No. 946278), Individually and in his Official Capacity, SGT. JOSE PEREZ, Shield No. 04499 (Tax Id. No. 935496), Individually and in his Official Capacity, SGT. WILLIAM RIVERA, Shield No. 03726 (Tax Id. No. 946705), Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

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Plaintiff ARTIE KEELING, by his attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully alleges as follows:

FACTS

1. Plaintiff ARTIE KEELING is an African-American male and has been at all relevant times a resident of New York County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal

Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants, POLICE OFFICER (“P.O.”) FRANKIE SOLER, Shield No. 27130 (Tax Id. No. 946278), SGT. JOSE PEREZ, Shield No. 04499 (Tax Id. No. 935496), SGT. WILLIAM RIVERA, Shield No. 03726 (Tax Id. No. 946705), and POLICE OFFICERS “JOHN DOE” #1-10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

8. On or about November 6, 2016, at approximately 1:30 a.m. in the County of New York, City, and State of New York, plaintiff ARTIE KEELING was lawfully present in the vicinity of 30 Macombs Place, New York, NY.

9. At the aforesaid time and place, defendant NYPD officers accosted plaintiff, roughly grabbed him and pushed him up against a vehicle, and then immediately began to search his person and effects without his consent or probable cause and/or reasonable suspicion.

10. Thereafter, the defendant officers threw plaintiff to the ground, kneed him in the back, pushed his face into the ground, and then placed him under arrest by handcuffing his arms tightly behind his back.

11. At no time on November 6, 2016, did defendants possess probable cause and/or reasonable suspicion to search plaintiff's person or effects nor did they obtain voluntary consent from him to do so.

12. At no time on November 6, 2016, did defendants possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to search plaintiff's person or effects.

13. At no time on November 6, 2016, did defendants possess probable cause to arrest plaintiff.

14. At no time on November 6, 2016, did defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

15. Thereafter, plaintiff was transported to a nearby police precinct where he was searched, fingerprinted, photographed, confined against his will in a holding cell, and charged with Resisting Arrest and Criminal Possession of a Weapon.

16. Further, plaintiff requested medical attention shortly after his arrival at the precinct but he was not transported to a medical facility for treatment for approximately twelve (12) hours.

17. In connection with plaintiff's arrest, defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the New York County District Attorney's Office. Thereafter, defendants repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest. Specifically, defendant SOLER falsely stated that he observed plaintiff to have a large bulge in his waistband and that based on his training

and experience he believed the bulge to be a firearm. Defendant SOLER further falsely stated that he observed plaintiff remove the bulging object – which defendant SOLER stated was a sock – from his waistband and throw it to the street and that he further observed that the sock contained a firearm after defendant RIVERA recovered it. In addition, defendant PEREZ falsely stated that he observed plaintiff repeatedly reach towards the bulge in his waistband and that plaintiff refused his orders to stop. Finally, defendant PEREZ falsely stated that plaintiff refused to put his hands behind his back, refused to be handcuffed, and refused to stop reaching for the bulge.

18. As a result of the foregoing, plaintiff spent approximately between three (3) to four (4) days in custody and has made approximately eleven (11) court appearances as of the date of this filing. Upon information and belief all charges against plaintiff will be dismissed in their entirety.

19. As a result of the foregoing, plaintiff ARTIE KEELING sustained, inter alia, loss of liberty, multiple physical injuries requiring medical treatment, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

STATE CLAIMS

20. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

21. On or about January 6, 2017 and within (90) days after the claim herein accrued, the plaintiffs duly served upon, presented to and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

22. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

23. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h but such hearing has not taken place. Attached hereto, as Exhibit “A” is a copy of the Stipulation executed by THE CITY OF NEW YORK permitting plaintiff to file this action.

24. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

25. Plaintiff has complied with all conditions precedent to maintaining the instant action.

26. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

**FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW
FALSE ARREST/IMPRISONMENT**

27. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

28. Defendant police officers arrested plaintiff in the absence of probable cause and without a warrant.

29. As a result of the foregoing, plaintiff was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for her safety, and humiliated and subjected to handcuffing and other physical restraints.

30. Plaintiff was conscious of said confinement and did not consent to the same.

31. The confinement of plaintiff was without probable cause and was not otherwise privileged.

32. As a result of the aforesaid conduct by defendants, plaintiff was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings. The aforesaid actions by the defendants constituted a deprivation of plaintiff's rights.

33. As a result of the aforementioned conduct, plaintiff has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ASSAULT

34. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

35. Defendants' aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

36. As a result of defendants' conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW
BATTERY

37. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

38. Defendant police officers touched plaintiff in a harmful and offensive manner.

39. Defendant police officers did so without privilege or consent from plaintiff.

40. As a result of defendants' conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

68. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

69. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

70. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

71. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

72. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

73. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress, mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

FIFTH CLAIM FOR RELIEF
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

74. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

75. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

76. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

77. Due to the negligence of the defendants as set forth above, plaintiff suffered mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

78. As a result of the foregoing, plaintiff is entitled to compensatory damages and is further entitled to punitive damages against the individual defendants.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
January 30, 2018

BY: _____/S_____
GERALD COHEN
JOSHUA FITCH
ILYSSA FUCHS
COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10273
(212) 374-9115

PLAINTIFF'S VERIFICATION

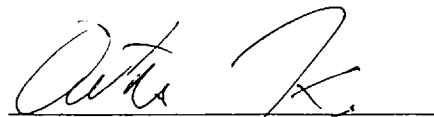
STATE OF NEW YORK)

) ss.:

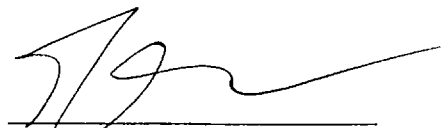
COUNTY OF NEW YORK)

ARTIE KEELING, being duly sworn, deposes and says:

I am the plaintiff in the foregoing action; I have read the annexed Complaint and know the contents thereof; the same are true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and to those matters I believe them to be true.


ARTIE KEELING

Sworn to before me this
30th day of January, 2018


Notary Public